

25STCV31741 25STCV31741

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-10

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Case Number: 25STCV31741 Hearing Date: September 10, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:22 PM on September 9, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 9, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that Defendant could

not repair the vehicle to conform to warranties.

The parties settled the case. Plaintiff moves for an award of attorney's fees, costs and expenses.

TENTATIVE RULING

Plaintiff Brittany Santillo's motion for attorney's fees is GRANTED in the reduced amount of \$21,000. Costs and expenses are awarded in the amount of \$1,692.49.

ANALYSIS

Motion For Attorney Fees, Costs and Expenses

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

The parties settled the case. Plaintiff moves for an award of attorney fees, costs, and expenses, in the total amount of: \$24,437.49, including: (1) \$22,745.00 in attorney's fee; and (2) \$1,692.49 in costs and expenses.

Plaintiff brought causes of action pursuant to the Song-Beverly Act, Civil Code § 1790, et seq. Civil Code, § 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

Plaintiff obtained a settlement for a full repurchase of her defective 2025 Chevrolet Traverse in the amount of \$49,000.00 (inclusive of loan payoff and all damages), prejudgment interest, and reasonable attorney's fees and costs to be determined by this Court. The § 998 offer expressly

designated Plaintiff as the prevailing party for purposes of a fee motion. (Geoulla Decl. ¶ 51, Ex. 1.)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal. App. 4th 1127, 1134.) “The determination of what constitutes a reasonable fee generally ‘begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....” “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award....” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the Complaint was filed on October 30, 2025. Defendant answered the Complaint on December 2, 2025. Plaintiff accepted Defendant’s Code Civ. Proc. § 998 offer on May 11, 2026. There was no law and motion filed or heard.

In general, Lemon Law litigation presents certain routine issues which are applicable to other consumers' vehicles, which would trigger economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of Lemon Law case. The Complaint included four causes of action, none of which were fraud-based.

Defendant

argues that this case settled in five months and Plaintiff's counsel overbilled.

The Court has examined the billing summary attached as Exhibit 2 of the Declaration of Bryan M. Geoulla[1].

The Court approves the hourly rate of \$350 and \$450. (Geoulla Decl., ¶ 6.) However, the Court reads into these hourly rate experience in consumer and Lemon Law litigation which would account for efficiency and knowledge that would be expected of counsel billing at these rates, which in turn should minimize the amount of legal research and drafting of discovery requests and responses required for this Lemon Law case. The Court acknowledges that Plaintiff's counsel prepared discovery responses, defended and conducted depositions and prepared for and participated in mediation.

"A

trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

The Court finds that the reasonable amount of attorney's fees incurred is \$21,000, which includes the time spent on bringing this fee motion.

As for costs

and expenses, Plaintiffs filed a memorandum of costs on July 16, 2026 seeking \$1,692.49 in costs. Defendant did not file a timely motion to tax costs. As such, \$1,692.49 is the amount of costs which will be awarded. (Cal. Rules of Court, Rule 3.1700(b)(4).) Opposing the costs in the opposition to the motion for attorney's fees ignores the fact that a memorandum of costs was independently filed, thereby triggering the procedure set forth in Cal. Rules of Court, Rule 3.1700(b).

The motion for

attorney's fees is GRANTED in the reduced amount of \$21,000. Costs and expenses

are awarded in the amount of \$1,692.49.

[1] The

Court notes that client has disclosed confidential attorney-client communications in these billing records. Counsel is advised in the future to redact such communications as in accordance with professional ethical standards.